

STATE OF NEW YORK

4871--A

2025-2026 Regular Sessions

IN SENATE

February 13, 2025

Introduced by Sens. FAHY, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- recommitted to the Committee on Disabilities in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to the duties of the independent developmental disability ombudsperson program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Section 33.28 of the mental hygiene law, as added by
2 section 1 of part KK of chapter 57 of the laws of 2023, is amended to
3 read as follows:
4 § 33.28 Independent developmental disability [~~ombudsman~~] ombudsperson
5 program.
6 (a) There is hereby established by the office for people with develop-
7 mental disabilities the independent developmental disability [~~ombudsman~~]
8 ombudsperson program for the purpose of assisting individuals with
9 developmental disabilities to ensure access by such individuals to
10 services and to preserve their rights.
11 (b) Such [~~ombudsman~~] ombudsperson program shall have the following
12 duties, including, but not limited to:
13 1. establishing a service delivery structure based in New York state
14 that includes a toll-free telephone hotline, an interactive website, and
15 availability of in-person, telephone and email access to ombudsperson
16 program staff or volunteers;
17 2. identifying, investigating, referring and resolving complaints that
18 are made by, or on behalf of individuals relative to access to services
19 provided by the office for people with developmental disabilities or
20 care coordination or other providers certified and/or authorized by the
21 office to provide services to people with developmental disabilities[~~r~~]

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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~~and access to initial and continuing intellectual and developmental disability services and supports];~~

3. providing assistance for navigating and completing processes, such as paperwork and documentation, to access services provided by the office for people with developmental disabilities or the care coordination provided by health homes serving individuals with developmental disabilities to individuals or services provided by other providers, and/or anyone seeking assistance on their behalf;

4. assisting individuals in filing and preparing appeals, and representing individuals in appeals and hearings concerning adverse benefit determinations regarding services provided by the office for people with developmental disabilities or health homes serving individuals with developmental disabilities to individuals or services provided by other providers;

5. collecting, tracking, and quantifying problems and inquiries encountered by individuals; and

6. educating individuals on their rights and responsibilities with respect to access to services provided by the office for people with developmental disabilities and care coordination provided by health homes serving individuals with developmental disabilities or services provided by other providers.

(c) Notices and materials provided to individuals by the office for people with developmental disabilities, providers of services, and the health homes serving individuals with developmental disabilities shall include the name, phone number and website address of the independent developmental disability ~~[ombudsman]~~ ombudsperson program established by the office for people with developmental disabilities pursuant to this section. ~~[The phone number shall be available for forty hours every week.]~~

(d) Funds available for expenditure pursuant to this section for the establishment of an independent developmental disability ~~[ombudsman]~~ ombudsperson program may be allocated and distributed by the commissioner of the office for people with developmental disabilities, subject to the approval of the director of the budget, but only after the commissioner of the office for people with developmental disabilities holds a request for proposal process for the establishment of an independent developmental disability ~~[ombudsman]~~ ombudsperson program. Only domestic not-for-profit corporations shall be eligible to submit proposals for such program. Entities that currently receive funding from the office for people with developmental disabilities to provide services to people with developmental disabilities, or to operate care coordination organizations, or that bill the Medicaid program for medical or health care services, shall be excluded from consideration. The commissioner of the office for people with developmental disabilities shall consider all competitive proposals submitted through such request for proposal process and shall determine which proposal submitted is appropriate for the establishment of an independent developmental disability ~~[ombudsman]~~ ombudsperson program. In making such determination, applicants who demonstrate experience providing advocacy or assistance to people with developmental disabilities, experience operating a call center, or experience tracking and reporting on case activities while protecting individual confidentiality shall receive deference for the award.

(e) Annually, no later than October thirty-first, the ombudsperson shall submit an annual report summarizing the work of the program and make recommendations to address systemic issues identified during the previous year. Such annual report shall be submitted to the governor,

1 the temporary president of the senate, the speaker of the assembly and
2 the relevant legislative committee chairs.

3 § 2. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law and shall apply to all policies and contracts
5 issued, renewed, modified, altered or amended on and after such date.